

STATE OF NEW YORK

6649--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. GIBBS, CUNNINGHAM, COLTON, EPSTEIN, GONZALEZ-ROJAS, O'PHARROW, HEVESI, BURROUGHS, REYES, GLICK -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to enacting the PTSD awareness and rehabilitation act

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "PTSD awareness and rehabilitation act".

3 § 2. Legislative findings and intent. The legislature finds that post-
4 traumatic stress disorder (PTSD) is prevalent among incarcerated indi-
5 viduals, often stemming from prior trauma, systemic inequalities, and
6 the conditions of incarceration itself. Without adequate mental health
7 support, individuals with untreated PTSD are more likely to experience
8 recidivism, difficulty reintegrating into society, and worsened mental
9 and physical health outcomes.

10 The intent of this act is to mandate PTSD screening, provide trauma-
11 informed education, and implement evidence-based rehabilitation programs
12 to ensure incarcerated individuals receive proper support for mental
13 health challenges. By addressing PTSD within the correctional system,
14 New York state aims to reduce recidivism, improve public safety, and
15 foster successful reentry into society.

16 § 3. The correction law is amended by adding a new section 12 to read
17 as follows:

18 § 12. PTSD screening and training requirements. 1. As used in this
19 section, the following terms shall have the following meanings:

20 (a) "Post-traumatic stress disorder" or "PTSD" means a mental health
21 condition triggered by exposure to traumatic events, characterized by

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 symptoms such as flashbacks, nightmares, severe anxiety, and emotional
2 distress.

3 (b) "Trauma-informed care" means an approach that recognizes the wide-
4 spread impact of trauma and integrates knowledge about trauma into poli-
5 cies, procedures, and practices to promote healing.

6 2. (a) The department shall implement PTSD screenings for all incar-
7 cerated individuals upon intake to a correctional facility and annually
8 throughout their incarceration.

9 (b) Screenings shall be conducted by licensed mental health profes-
10 sionals trained in trauma-informed care.

11 (c) Individuals identified as experiencing PTSD shall receive appro-
12 priate clinical treatment, including therapy and counseling services.

13 (d) Any incarcerated individual may decline to participate in a PTSD
14 screening pursuant to this section, provided that:

15 (i) the individual is provided information about PTSD in writing;

16 (ii) such written information shall include, but not be limited to, a
17 description of the symptoms of PTSD, and the types of treatments avail-
18 able for PTSD; and

19 (iii) a written record of such declination is maintained by the chief
20 administrative officer of the facility.

21 3. (a) The department shall develop and implement a mandatory PTSD
22 education program for all incarcerated individuals, covering:

23 (i) understanding PTSD and its symptoms;

24 (ii) coping strategies for managing PTSD;

25 (iii) the impact of trauma on mental and physical health; and

26 (iv) available resources for support.

27 (b) The education program established pursuant to this subdivision
28 shall be provided to an incarcerated individual within the first sixty
29 days of incarceration and repeated periodically throughout the sentence
30 at a frequency to be determined by the department.

31 4. (a) The department shall integrate trauma-informed rehabilitation
32 programs into existing correctional education and vocational training.

33 (b) The department shall, to the extent practicable, ensure all incar-
34 cerated individuals are exposed to trauma-informed rehabilitation
35 programs through their normal activities.

36 (c) Programs integrated pursuant to this subdivision shall include,
37 but not be limited to, evidence-based therapy such as cognitive-beha-
38 vioural therapy (CBT), mindfulness-based stress reduction (MBSR), and
39 peer support groups.

40 (d) Special consideration shall be given to programs for veterans,
41 survivors of violence and other vulnerable populations.

42 5. The department shall ensure all incarcerated individuals who are
43 identified as having PTSD during the screenings performed pursuant to
44 subdivision two of this section are provided appropriate treatment based
45 on the severity, symptoms, and causes identified.

46 (a) The department may contract with a state agency or a private enti-
47 ty with experience providing PTSD treatment to provide such treatment.

48 (b) Treatment provided pursuant to this subdivision shall be trauma
49 informed, patient-centered care suitable for an incarcerated individual.

50 6. (a) All correctional officers, mental health professionals working
51 in correctional facilities, and administrators shall receive annual
52 training on:

53 (i) recognizing PTSD symptoms in incarcerated individuals;

54 (ii) de-escalation techniques and trauma-informed crisis intervention;
55 and

1 (iii) referral procedures for mental health treatment and support
2 services.

3 (b) Training programs to implement the provisions of this subdivision
4 shall be developed by the department in collaboration with mental health
5 experts, advocacy organizations and formerly incarcerated individuals
6 with lived experience.

7 7. (a) The department shall maintain data on PTSD screenings, educa-
8 tion program participation, and mental health treatment outcomes.

9 (b) The department shall submit an annual report to the governor and
10 the legislature summarizing:

11 (i) the number of incarcerated individuals screened for PTSD;

12 (ii) the number receiving PTSD-related treatment and services;

13 (iii) the number of incarcerated individuals who declined to partic-
14 ipate in a PTSD screening; and

15 (iv) recommendations for program improvements.

16 8. In addition to any state funds appropriated for the purposes of
17 this section, the department may secure and utilize funding which may be
18 available through federal grants or partnerships with mental health
19 organizations.

20 § 4. This act shall take effect on the one hundred eightieth day after
21 it shall have become a law. Effective immediately, the addition, amend-
22 ment and/or repeal of any rule or regulation necessary for the implemen-
23 tation of this act on its effective date are authorized to be made and
24 completed on or before such effective date.